

# STATE OF NEW YORK

368--A

2025-2026 Regular Sessions

## IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. ROZIC, DINOWITZ -- read once and referred to the Committee on Labor -- recommitted to the Committee on Labor in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to requiring employers to obtain an acknowledgement of receipt from employees of their sexual harassment prevention policy and sexual harassment prevention training program in writing in English and in employees' primary languages

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 3 of section 201-g of the labor law is renumbered subdivision 5 and a new subdivision 3 is added to read as follows:

3. a. Each time an employer provides their employees with written notice of such employer's sexual harassment prevention policy and information presented at such employer's sexual harassment prevention training program, the employer shall obtain from the employee a signed and dated electronic or written acknowledgement, in English and in the primary language of the employee, of receipt of this notice, which the employer shall preserve and maintain for six years. Such acknowledgement shall include an affirmation by the employee that the employee accurately identified their primary language to the employer, and that the notice provided by the employer to such employee pursuant to this subdivision was in the language so identified or if such notice is not available from the commissioner in the employee's primary language, was provided to the employee in English, and shall conform to any additional requirements established by the commissioner with regard to content and form.

b. Every employer shall notify their employees in writing of any changes to such employer's sexual harassment prevention policy or to the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD01378-02-6

1 information presented in their sexual harassment prevention training  
2 program, at least seven calendar days prior to the time of such changes.  
3 § 2. This act shall take effect on the ninetieth day after it shall  
4 have become a law. Effective immediately the addition, amendment and/or  
5 repeal of any rule or regulation necessary for the implementation of  
6 this act on its effective date are authorized to be made and completed  
7 on or before such effective date.